

HOUSE No. 626

The Commonwealth of Massachusetts

PRESENTED BY:

Michael P. Kushmerek

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to end discriminatory outcomes in vocational school admissions.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>1/17/2025</i>

HOUSE No. 626

By Representative Kushmerek of Fitchburg, a petition (accompanied by bill, House, No. 626) of Michael P. Kushmerek relative to discriminatory outcomes in vocational school admissions. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 524 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to end discriminatory outcomes in vocational school admissions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 74 of the General Laws is hereby amended by inserting after section 5B the
2 following section:-

3 Section 5C. (a) For the purposes of this section, the following terms shall have the
4 following meanings:

5 “Eligible applicant”, a student that meets the requirements to be promoted to the
6 applicable grade. Any admission offered to an applicant before having been promoted to the
7 applicable grade shall be contingent only upon promotion.

8 “Department”, the department of elementary and secondary education.

9 (b) If there are more eligible applicants than spaces available for admission to a
10 vocational-technical school or vocational-technical program within a vocational-technical school
11 or comprehensive high school, whether or not the program is approved under this Chapter and
12 including exploratory programs, the school shall hold a blind lottery to determine which
13 applicants shall be admitted. No eligible applicant shall be required to submit anything to
14 participate in the lottery other than the school the eligible applicant is currently enrolled in and
15 contact information as determined relevant by the school.

16 (c) Each school shall place eligible applicants who entered the lottery but were not
17 admitted on a waitlist, the order of which shall be determined by the lottery. The waitlist shall
18 include the names, home address, telephone number and grade level of such students and any
19 other information the department deems necessary. The school shall forward the waitlist to the
20 department of education no later than June 1 in the year in which the lottery is held. The
21 department shall maintain a consolidated waitlist in order to determine the number of individual
22 students in each city or town seeking admission to vocational-technical education schools and
23 programs. If a school fills a vacancy after the initial admissions cycle is completed, said school
24 shall fill the vacancy with the next available student on the waitlist and shall continue through
25 the waitlist until a student fills the vacant seat.

26 (d) The commissioner shall collect application, admission, enrollment, and waitlist data
27 pertaining to at a minimum race, ethnicity, students with disabilities, economically
28 disadvantaged students, and English language learners. The commissioner shall also collect data
29 on the number of students enrolled in each vocational technical education program receiving
30 services pursuant to chapter 71A, chapter 71B or both. The commissioner shall annually file said

31 data with the clerks of the house and senate and the joint committee on education and make said
32 data available to the public online not later than November 1.

33 (e) The board shall promulgate regulations for implementation and enforcement of this
34 section.